▼ VIEWPOINT

THE PLASTICS DIVIDE

A truly global agreement on plastic waste remains elusive thanks to the developed world's insistence on dictating terms



BY LEENA NANDAN

This past fortnight, all eyes were on the resumed fifth session of the Intergovernmental Negotiating Committee (INC) on Plastics in Geneva. That consensus has yet again proved elusive is disappointing but, frankly, not a surprise.

To give the issue context, the United Nations Environment Assembly (UNEA) had adopted a resolution, piloted by India, on pollution caused by single-use plastics (SUP), in 2019. In 2021, India imposed a ban on SUP, effective from July 1, 2022, and then notified the Extended Producer Responsibility Rules in February 2022, which casts an obligation on producers, importers and brand owners of all products containing plastics, towards collecting and recycling the resultant waste plastic.

Rwanda and Peru and, later, Japan, piloted resolutions in 2021, calling for a ban on plastics production. Mindful of the ramifications of a ban on plastic production, India piloted a parallel resolution that emphasised nationally determined pathways for managing plastics pollution, based on countries' respective capabilities. India's stance was that focused and specific action against plastics pollution was the need of the hour, but throwing the baby out with the bathwater was certainly no solution! The historic resolution on plastic pollution adopted during the UNEA in Nairobi in March 2022 provided for the setting up of the INC. That it drew upon the Rio principles is testament to the key role played by India, which had insisted that CBDR-RC (Common But Differentiated Responsibilities-Respective Capabilities), had to be the cornerstone of the resolution.

Plastic plays a critical role in varied sectors of the economy. The instrument in question is being developed as an internationally legally binding treaty; thus, equity and fairness to prevent any imbalance is of paramount importance.



Illustration by RAJ VERMA

INDIA AGREES THAT FOCUSED ACTION ON PLASTICS POLLUTION IS THE NEED OF THE HOUR, BUT THE SOLUTION ISN'T THROWING THE BABY OUT WITH THE BATHWATER

Developing countries have consistently stated that plastics in its many forms is vital for food and water security, healthcare, infrastructure etc. The developed countries, on the other hand, have drawn red lines by tarring all plastics with the same brush, and insisting on setting targets for plastics production, and the chemicals used in the process. The real reason for the hard line might very well be the opportunity to sell technology to developing countries, of materials other than polymer, which only the developed countries are in possession of!

The negotiation process has been complex and challenging. India, China, Russia, Saudi Arabia, Kuwait et al have organised themselves in an informal grouping of like-minded countries. The sticking points are primarily the move to put a cap on polymer production, usage of 'chemicals of concern' and listing plastics products for phaseout. India insists a uniform, prescriptive approach, like capping polymer production or phaseout of certain products, is not acceptable; it is for countries to devise their own strategies based on national circumstances. With respect to 'chemicals of concern', the proposed instrument must have a definite criteria, framework and process for identification and that too for only those chemicals not covered under other multilateral environment agreements.

Technical and financial assistance, including technology transfer to developing countries through a stand-alone dedicated multilateral fund, is also missing from successive negotiations. This is the real dichotomy—developed countries have contributed significantly to plastic pollution, including legacy plastic waste in the marine environment, and have earned revenues from transfer of plastic polymer technology, but are unwilling to take on any financial responsibility towards the solution.

Though the draft text initially circulated by the INC chair did have areas for broad agreement on some aspects, the revised text omitted most of the issues vital to the interests of developing nations, notably the CBDR-RC principle. The 'My Way or the Highway' approach of developed countries has put paid to all hopes of a tangible, concrete outcome. The way ahead seems uncertain now, but then tomorrow is another day. ■

The writer is former Secretary, MoEFCC. Views are personal